

Mahendra Singh @ Omprakash v. State of U.P. — recovery citation after disconnection relegated to CGRF

Allahabad High Court · Division Bench · 5 February 2021 · Writ-C No. 3842 of 2021 · **Writ disposed; petitioner directed to CGRF under Clause 7.10; recovery citation dated 6 January 2021 kept in abeyance pending the Forum's decision.**

HEADNOTE

Without examining merits, a writ seeking to quash a recovery citation issued after disconnection, while a civil suit for restoration remained pending, was disposed of by directing the consumer to the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. The complaint was to be filed within two weeks and decided by a speaking and reasoned order after hearing, within four weeks thereafter. Recovery pursuant to the citation dated 6 January 2021 was kept in abeyance until the Forum decided the complaint.

FACTUAL SUMMARY

The petitioner's electricity connection was disconnected. He instituted a civil suit for restoration, which remained pending. The distribution licensee then initiated recovery, culminating in a recovery citation dated 6 January 2021. The petitioner sought certiorari to quash that citation and a mandamus restraining further recovery. Licensee's counsel submitted that the civil suit was still pending and that the petitioner, now disputing the recovered amount, could approach the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005, or the civil court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF as alternate remedy for recovery after disconnection

HOLDING

A writ challenging a recovery citation issued after disconnection is disposed of without merits examination by directing the petitioner to the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005; the Forum shall decide the complaint by a speaking and reasoned order after opportunity of hearing, and recovery under the citation remains in abeyance until that decision. ¶ 1

PRINCIPLE TAGS

alternate-remedy-clause-7.10 Writ against a post-disconnection recovery citation disposed of by relegating the consumer to CGRF under Clause 7.10, with recovery kept in abeyance pending the Forum's speaking order. ¶ 1

consumer-grievance-redressal-forum-remedy-clause-7.10 Dispute over the recovery amount after disconnection channelled to the Redressal Forum under Clause 7.10 rather than decided on the writ. ¶ 1

clause-7.10-forum-ombudsman-route-for-billing-grievances Challenge to the amount in the recovery citation treated as a billing grievance for the Clause 7.10 Forum route. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION AND THE DISPUTED ARREARS

The Court expressly declined to enter into the merits and relegated the dispute to the Forum under Clause 7.10. ¶ 1

NOT DECIDED — LAWFULNESS OF THE DISCONNECTION AND RESTORATION OF SUPPLY

A civil suit for restoration was stated to be pending; the Court did not decide restoration or the effect of that suit. ¶ 1

